

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIRMATION IN
OPPOSITION**

-against-

Motion Sequence #3

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,Justice Assigned:
Hon. Frank TinariDefendants.
-----X

1. John N. Cuomo, an attorney duly licensed to practice law in the State of New York, affirms under penalties of perjury as follows:

2. I represent plaintiffs Diane C. DeSousa (“Mrs. DeSousa”) and Thomas E. DeSousa (“Mr. DeSousa”) (Mrs. DeSousa and Mr. DeSousa collectively “Plaintiffs”) in the above-entitled action.

3. As such I am fully familiar with the facts and circumstances of the above captioned case, and I make the following statements based upon my personal knowledge, information, and belief.

4. I submit this Affirmation in Opposition to defendant Patrick J. Karcher’s (“Karcher”) motion for summary judgement pursuant to CPLR §3212(b) dismissing Plaintiffs’ Complaint in its entirety.

5. Plaintiffs’ Complaint sets forth a nuisance action involving the premises known as 320 Grand Central Avenue, Amityville, New York 11701 (the “Premises”) (see, [NYSCEF#2](#)).¹ Specifically, Plaintiffs have alleged and shown that defendant Richard A. Calvagno II (1)

¹ See CPLR§ 2214(c).

tortiously operates and uses his high-powered Dodge Charger Hellcat by, among other things, remotely starting, idling, and revving the vehicle in the driveway at the Premises; (2) unlawfully engages in restricted commercial activity at the Premises, including boat slip rentals and catering; and (3) unlawfully allows trash and debris to collect in front of the Premises, thereby causing a rat infestation at Plaintiffs' property.

6. Karcher asserts that he is entitled to judgment as a matter of law because each of Plaintiffs' cause of actions relates to conduct committed by defendant Richard A. Calvagno II ("Calvagno") at the Premises. However, Karcher is a co-owner of the subject property in this case and therefore, is a necessary and indispensable party that may not be dismissed otherwise complete relief cannot be accorded to Plaintiffs.

7. Non-joinder of a party who should be joined under CPLR § 1001 is a ground for dismissal of an action without prejudice (see CPLR § 1003). Under CPLR §1001(a), a necessary party is one whose non-joinder will jeopardize the outcome of the action in either of two ways: (1) "complete relief" cannot be accorded the existing parties to the action; or (2) the absentee might be "inequitably affected" by the judgment. If a person's absence would lead to either result, the statute declares the person to be a "party who should be joined."

8. "[T]hose owning or holding interests in real property are necessary parties to a nuisance action affecting the property or to a proceeding to restrict its use" (*Stanley v. Amalithone Realty, Inc.*, 31 Misc. 3d 995, 998 [Sup. Ct. NY County 2011] [internal citations omitted]; see, *Hitchcock v. Boyack*, 277 A.D.2d 557 [3d Dep't 2000]; see also, *Hutchins v. Smith*, 1872 WL 9619 [N.Y. Sup. Ct. 1872] [holding a nuisance "action must be against the owners in fee"]).

9. Here, there is no dispute Karcher is a joint owner of the Premises. Suffolk County land records show that Calvagno and Karcher are joint owners of the Premises by way of a deed

from Jeffrey and Tara Wheeler which was recorded in the office of the Suffolk County Clerk in Liber D00012999 at Page 257 on February 2, 2019. Karcher also does not deny he is a co-owner of the Premises and in fact readily admits that “[i]n or about January 2017, [he] co-signed Calvagno’s mortgage to assist his purchase of the [Premises]” (see, Karcher Affidavit; [NYSCEF#63](#)).

10. Furthermore, complete relief cannot be accorded to Plaintiffs if Karcher is dismissed from this action. In addition to money damages, Plaintiffs seek declaratory and injunctive relief to abate and restrain the nuisances committed at the Premises (see, [NYSCEF#2](#) at 11-12). If Plaintiffs were to obtain this relief only against Calvagno, Karcher would not be equally bound by such restrictions at the Premises. Karcher’s dismissal would therefore preclude complete relief as his absence will impair or impede Plaintiffs’ abilities to restrain or abate the nuisance at the Premises. As a result, Karcher is a necessary and indispensable party to this action that may not be dismissed.

11. For all the foregoing reasons, Karcher’s motion for summary judgement should be denied in its entirety.

Dated: Commack, New York
June 20, 2024



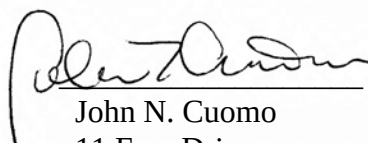
John N. Cuomo
Attorney for Plaintiffs
Diane and Thomas DeSousa
11 Fern Drive
Commack, New York 11725
631-403-0515

CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that foregoing document was completed using a word processing system and that I have relied on that system's word count in preparing this certification and word count: The total words, excluding those permitted to be excluded (caption, signature block) is 726.

Dated: Commack, New York
June 20, 2024

Yours, etc.,

A handwritten signature in black ink, appearing to read "John N. Cuomo", is written over a horizontal line.

John N. Cuomo
11 Fern Drive
Commack, NY 11725
631-403-0515